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July 1983, State Racism and Truth Commissions

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Image courtesy Sangam

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To everyone who has not read them I recommend reading Izeth Hussain's, articles of 31 August and 7 September in The Island, and my article in groundviews and in the Sunday Leader of 4 August 2013. We cannot seek to forget tragedies such as the Burning of the Jaffna Public Library in 1981, Black July 1983, the massacre of Muslim worshippers in Kaththankudi, the murder of six hundred Sinhalese and Muslim policemen in the Eastern province and many other terrible incidents in this once idyllic island, and expect the ill consequences to disappear without trace. They will linger and keep coming back to haunt us all for a very long time unless there is effective closure. The victims and their families and loved ones will not forget; nor should others unless the truth has been told, and appropriate justice meted out. In the South African context Bishop Tutu refers to restorative justice and retributive justice as appropriate following truth telling. In South Africa and many other countries such a process has helped to bring about national reconciliation. Any attempt to prescribe closure without such due process will surely fail and backfire. In each of the countries that had successful truth commissions, there was truth telling by the perpetrators in the presence of the victims; this has never been the case in Sri Lanka.

As Patricio Aylwin stated when he became President of Chile, "To close our eyes and pretend none of these ever happened would be to maintain at the core of society a source of pain, division, hatred and violence. Only the disclosure of truth and the search for justice can create the moral climate in which reconciliation and peace will flourish". In the words of Robert I. Roberg in his book on Truth Commissions and the Provision of Truth, Justice and Reconciliation: "If societies are to prevent recurrences of past atrocities and to cleanse themselves of the corrosive enduring injuries to individuals and whole groups, societies must understand – at the deepest possible levels – what occurred and why, in order to come fully to terms with their brutal pasts. They must uncover, in precise detail, who did what, to whom and why, and under whose orders. They must seek, at least, thus to uncover the truth – in so far as this aim is humanly and situationally possible after the fact" (quoted from the Report dated September 2002 of the Sharvanda Commission. But it was not really a Truth Commission because there was no truth telling by the perpetrators.

More than a decade ago, I chaired a Human Rights Commission Committee of Inquiry into Disappearances from Jaffna that occurred in the 90s. The inquiry was conducted many years after the disappearances, but the details were yet painful to all concerned including the Committee of Inquiry. Our experience was that the families of the victims had progressively degenerated in the absence of satisfactory closure, and our inquiry brought back to the surface unpleasant memories, none of which had been forgotten. Almost all living victims, including their families, accepted our invitation to give evidence even if, in the case of the very poor, it required borrowing money for the bus fare (which we had no provision to reimburse). The victims (but none of the perpetrators, all of whom were evasive) appeared to be greatly relieved at the opportunity to appear before an official body and to tell the painful truth as they remembered it. In virtually every case we issued certificates confirming the Disappearance. Those who had hitherto refused to accept that their loved one was dead could now proceed to conduct the appropriate religious ceremonies, and to apply closure to the terrible tragedy that they never forgot.

Our inquiry and the certificate confirming the disappearance that we issued helped them to come to terms with the tragedy, accept the disappearance to the victims, to claim the meager compensation due to the families of the victims of terrorism related death or disappearance, and to get on with their lives. This is what President C. B. Kumaranatunga attempted to do through appointing a Commission headed by Justice Sharvananda to inquire in

to the July 1983 pogrom (as well as other violence in the years 1981, 1982, 1983 and 1984), and following up with an apology to the victims of that pogrom. The TOR of that Commission had many serious shortcomings (notably limiting the inquiry period to six months). These shortcomings are unavoidably reflected as deficiencies in the report. But the significance of that Commission should not be underrated. President JRJ had gone to great lengths to attempt to shift the blame for the pogrom from those (mostly within the state establishment) who organized it to the Sinhalese people (mostly innocent) and the Tamil people (many of them victims). The Sharvananda Commission accepted the complicity of the State in the burning of the Jaffna Public Library in 1981, which served as a prelude to the July 1983 pogrom. Glaring omissions were the absence of truth telling by the perpetrators, the lack of a meaningful follow up, notably the failure to prosecute the leaders responsible for the 1981 and 1983 pogroms, and the failure to adequately compensate the victims. The Jaffna Public Library was rebuilt but the thousands of irreplaceable books and manuscripts were lost for all time.

The 1981 pogrom in Jaffna, and the December 1982 referendum to extend the life of parliament, retaining its 5/6 majority, greatly facilitated but may or may not have been designed as a part of the build up to Black July 1983. But there was a sequence of other events in the few weeks immediately preceding Black July which appear to be ominous preparation for the days of terror to follow. These include the Regulations of June 3 authorizing police officers of the rank of ASP and above to dispose of dead bodies in the North without any inquest proceedings or other inquiries; the order of July 2 prohibiting the publication and sealing the offices of *Suthanthiran* and *Saturday Review* (both Jaffna based); an announcement by President Jayawardene broadcast on SLBC and published in the London based *Daily Telegraph* of July 12, that, "I am not worried about the opinion of the Jaffna people now. Now we can't think of them. Not about their lives or their opinion about us... on terrorist issues we are going to deal with ourselves without any quarter being given"; the Regulations permitting the police to dispose of dead bodies without a judicial inquiry was extended island-wide with effect from July 18, a week before the commencement of the pogrom; and the imposition with effect from July 20 of total censorship relating to terrorism. Moreover the response of the President and the State to the pogrom was neither to appease the Tamil people nor to rein in the perpetrators but to further disable the Tamil Members of Parliament through the Sixth Amendment of August 4, effectively removing them from parliament and from the leadership of the Tamil people, creating a political vacuum quickly and predictably filled by the LTTE.

Izeth Hussain's article of 7 September focuses on anti-Muslim state racism. We have had many violent manifestations of Tamil racism (mostly organized by the LTTE), Muslim racism and Sinhala racism but the most potent racism has been State organized Sinhala racism. The LTTE rebellion was an ill thought out suicidal response to oppression by the State which lead to terrible loss of lives and other repercussions including 24 years of Civil War; its aims were neither attainable nor desirable even from the perspective of the Tamil population. The project was doomed from the outset though, for three decades beginning with the Vaddukottai Resolution, Tamils were intimidated against publicly defying the LTTE. The LTTE was wiped out four and half years ago. But as yet there are no credible moves towards any reconciliation.

Currently the focus of State racism is primarily on the Muslims, but anti-Tamil State racism retains its potential. In this context we note that there have been many State led ethnic pogroms since independence but never any non state led race riots comparable to those that have occurred repeatedly in neighboring countries of South

and South East Asia. This suggests that the potential for National reconciliation is much better in Sri Lanka than in neighboring countries. But in Sri Lanka it is the State that has been and continues to be responsible for racist violence and oppression. Unless the State is transformed, it will continue to have a vested interest in suppressing the truth. If this persists it will be suicidal both for the State and for the people of our Island. Even if victims cannot forget, they should be enabled to forgive. As a widow testifying before the South African Truth and Reconciliation put it, “No government can forgive. No Commission can forgive. They don’t know my pain. Only I can forgive, and I need to know before I can forgive”.

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